

2026:PHHC:086942



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

101

**CRM-M-31315-2026
Decided On: 08.06.2026**

VIKRAM KULJIT SINGH

....PETITIONER(S)

VERSUS

STATE OF UT CHANDIGARH

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. Ankur Bansal, Advocate for the petitioner

Mr. Manish Bansal, Advocate, Public Prosecutor for UT, Chd.

Mr. Rohit Khullar, Advocate for the complainant.

SANDEEP MOUDGIL, J. (ORAL)

1. Prayer

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.26 dated 19.02.2026 under Sections 120-B, 420, 468, 471 of IPC (Section 61, 318(4), 336(3), 340 (2) of BNS, 2023), registered at Police Station Sector 36, UT, Chandigarh.

2. Contention

On behalf of the petitioner

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case. It is contended that the dispute between the parties is purely civil in nature and has been given a criminal

colour by the complainant in connivance with the police authorities. Counsel further argues that even during the inquiry proceedings, the allegations levelled against the petitioner could not be substantiated before the Inquiry Officer.

It is further submitted that the amount of ₹10,00,000/- requested by the complainant was duly transferred by the petitioner to Elgran Company, and the corresponding UTR number was also shared with the complainant through WhatsApp. Additionally, the complainant had executed a Memorandum of Understanding/Mutual Understanding and expressly acknowledged therein that no amount remained due or payable by the petitioner. In such circumstances, when the complainant himself had admitted that nothing was outstanding against the petitioner, the registration of the FIR is wholly unjustified and based on false and baseless allegations. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State/Complainant

Mr. Manish Bansal, learned Advocate and Public Prosecutor for UT Chandigarh, accepts notice on behalf of the respondent/UT Chandigarh and has filed a status report dated 08.06.2026 by way of an affidavit sworn by DSP Dhiraj Kumar, DANIPS. Mr. Rohit Khullar, learned counsel, accepts notice on behalf of the complainant and has filed a reply dated 06.06.2026 supported by the affidavit of the complainant, Harbinder Singh. The same are taken on record.

Learned Public Prosecutor for UT Chandigarh submits that a notice under Section 41-A of the Cr. P.C. (now Section 35 of BNSS 2023), has already been issued to the petitioner. He further contends that the dispute pertains to certain financial transactions between the complainant and the

petitioner, involving an amount of ₹1 lakh and other amounts allegedly paid on different occasions.

However, on a specific query put by this Court, learned Public Prosecutor for UT Chandigarh was unable to point out any circumstance necessitating the custodial arrest of the petitioner or any specific recovery that remains to be effected from him.

On the other hand, learned counsel appearing for the complainant submits that the petitioner, in connivance with one of his associates, fraudulently induced the complainant and caused him a wrongful loss of approximately ₹42 lakhs.

3. Analysis

Be that as it may, the record reveals that the complainant, who projected himself as an NRI residing in the United States of America, had come to India with the intention of establishing a company under the name and style of Elgron India Builders and Development Private Limited at Zirakpur, District S.A.S. Nagar. However, owing to certain regulatory restrictions and compliances imposed by the Government, the proposed project was allegedly found to be commercially unviable. Subsequently, the complainant engaged the petitioner and one Beerpal Singh in connection with the affairs of the company and subsequently appointed them as Directors thereof.

It is an admitted position that the petitioner has already joined the investigation and appeared before the police authorities, where his statement dated 16.04.2025, annexed as Annexure P-5, was duly recorded. This fact has not been disputed by the learned Public Prosecutor.

It is also noted that the possibility of the complainant having lodged the present FIR with a view to exert pressure upon him can also be ruled

out. Therefore, this Court is of the opinion that no requirement of custodial interrogation exists at this stage.

4. Relief:-

Hence, in the absence of any reason for taking the petitioner in custody and any effective recovery sought by the State and the fact that the petitioner has already joined investigation, this Court deems it appropriate that the petitioner be released on anticipatory bail, on furnishing of personal/surety bonds to the satisfaction of the Investigating Officer. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid directions, the order passed by this Court today shall automatically stand cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026

NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>